

Court No. - 3

Case :- WRIT - C No. - 16762 of 2021

Petitioner :- Yatendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shahnawaz Akhtar

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Heard Sri Satendra Kumar Sharma, Advocate holding brief of Sri Shahnawaz Akhtar, learned counsel for the petitioner; learned Standing Counsel for the State and Sri Sunil Kumar Dwivedi, learned counsel for the respondent no.3.

Present petition has been filed against the notice dated 23.10.2020 issued by respondent no.3 seeking electricity dues being Rs. 5,22,409/- due to the petitioner.

The petitioner disputes the correctness of the same. He also claims to have deposited Rs.13,380/- towards its dues in July, 2020.

Submission of learned counsel for the petitioner is that against the demand for electricity charges dues, petitioner has filed an objection dated 06.03.2021 (Annexure no.5 to the writ petition) wherein he has prayed for (i) quashing of the demand notice and; (ii) correction of the bill.

Insofar as prayer (ii) made by the petitioner with respect to correction, is referable to provision of Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 (hereinafter referred to as the 'Code'), the present petition is **disposed of** with a direction, in case, petitioner complies with Clause 6.5(b)(ii) of the Code within a period of one month from today and makes a deposit of Rs. 1,00,000/- before the respondent no. 3, the said authority may proceed to pass appropriate orders regarding correction, as prayed for within a period of two weeks' thereafter.

For a period of six weeks' from today or till the disposal of the petitioner's objection whichever is earlier, no coercive measure shall be adopted against the petitioner.

Order Date :- 30.7.2021

A.Kr.